



U.S. Department  
of Transportation  
**Research and  
Special Programs  
Administration**

400 Seventh St., S.W.  
Washington, D.C. 20590

**FEB 4 2003**

DOT-E 13164

|                                    |
|------------------------------------|
| EXPIRATION DATE: December 31, 2004 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: United States Enrichment Corporation  
Bethesda, MD
2. PURPOSE AND LIMITATION:
  - a. This exemption authorizes the one-time, one-way transportation in commerce of 220 model 48OM cylinders containing natural uranium hexafluoride from United States Enrichment Corporation's Paducah, KY plant to their plant in Portsmouth, OH. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.420 as it pertains to 48OM cylinders containing uranium hexafluoride having a 0.25 inch minimum wall thickness.
5. BASIS: This exemption is based on the application of United States Enrichment Corporation (USEC) dated October 2, 2002 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Material Description                                             |                           |                       |               |
|----------------------------------------------------------------------------|---------------------------|-----------------------|---------------|
| Proper Shipping Name                                                       | Hazard Class/<br>Division | Identification Number | Packing Group |
| Radioactive material, uranium hexafluoride non-fissile or fissile excepted | 7                         | UN2978                | N/A           |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Model 480M cylinders transported under this exemption must be inspected prior to transport to ensure that the water volume, uranium hexafluoride content, and pitting is in accordance with the acceptable levels identified in their application for exemption on file with the Office of Hazardous Materials Exemptions and Approvals.

b. OPERATIONAL CONTROLS -

(1) Transportation is only authorized between USEC's Paducah, KY and Portsmouth, OH plants.

(2) Model 480M cylinders authorized by this exemption must be emptied of their contents and removed from service at USEC's Portsmouth, OH plant.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

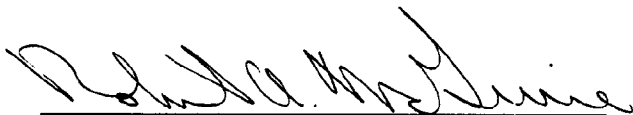
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

**FEB 4 2003**

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RBoyle